

COMMERCIAL LEASE AGREEMENT (No. 00009)

This Commercial Lease Agreement (the "Agreement") is entered into by and between Summit Telecom Co. ("Party A") and Tessera Foods Inc. ("Party B").

1. GENERAL PROVISIONS

The parties shall cooperate in good faith to give full effect to the purpose of this Agreement. The parties acknowledge that they have negotiated this Agreement in good faith and at arm's length. This Agreement may be executed in counterparts, each of which shall be deemed an original instrument. The parties agree that the terms of this Agreement are confidential and proprietary to the disclosing party. This Agreement is binding upon and inures to the benefit of the parties and their permitted successors and assigns.

The failure of either party to enforce any right shall not be deemed a waiver of that right. This Agreement is binding upon and inures to the benefit of the parties and their permitted successors and assigns. The failure of either party to enforce any right shall not be deemed a waiver of that right. The parties acknowledge that they have negotiated this Agreement in good faith and at arm's length. Each party represents that it has full corporate authority to enter into and perform this Agreement. Each party represents that it has full corporate authority to enter into and perform this Agreement.

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3. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of Georgia, without regard to its conflict-of-laws principles.

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6. MATTER REFERENCE

This engagement is recorded under matter reference M-1009-00009 and is known internally as Project Juniper.

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9. LIMITATION OF LIABILITY

The aggregate liability of each party under this Agreement shall not exceed \$3,853,000 in the aggregate, regardless of the form of action.

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12. CONFIDENTIALITY

The confidentiality obligations of the Receiving Party shall survive termination of this Agreement for a period of 11 years.

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15. TERM AND TERMINATION

Either party may terminate this Agreement for convenience upon 78 days prior written notice to the other party.

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IN WITNESS WHEREOF, the parties have executed this Agreement.

Summit Telecom Co.

Tessera Foods Inc.